

a Substitution of Attorney was filed on June 4, 2026 and Plaintiff is now represented by counsel. Counsel has submitted a response to the OSC stating all defendants have now been served. Proofs of service have been filed for two of the three Defendants. There is no proof of service on file for Defendant Fairway Oaks Mobile Home Park. Based on the efforts of counsel, sanctions will not be imposed. The Court DISCHARGES the OSC. This matter is set for **Monday, September 14, 2026, at 9:00 a.m. in Department 64** for status of responsive pleadings and, if appropriate, trial setting. Plaintiff shall give notice. **No appearance is necessary on today's calendar.**

**HILL, ET AL. VS. NELSON, ET AL.**

**CASE NUMBER: 25CV-0208635**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause Re: Sanctions issued to Plaintiff Kathleen Hill and her counsel on June 2, 2026 for their failure to timely serve pleadings on the defendants as required by CRC 3.110(b). The Complaint was filed on September 8, 2025. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). It has now been over ten months and there is no Proof of Service of Summons on file. No written response to the Order to Show Cause was filed.

With no sufficient excuse for the delay, the Court will impose sanctions in the amount of \$250 against Plaintiff and her counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, October 19, 2026, at 8:30 a.m. in Department 64**. The clerk is directed to issue an Order to Show Cause Re: Dismissal.

**HOLLOWELL VS. LITTLEPAGE, ET AL.**

**CASE NUMBER: 25CV-0206936**

**Tentative Ruling on Motion to Deem RFAs Admitted:** Defendant Joshua James Littlepage seeks an order deeming admitted the truth of matters specified in Defendant's Request for Admissions, Set One, which was served on Plaintiff William Edwin Hollowell by certified mail and email on December 18, 2025. The Motion has been properly noticed and is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Defendant's moving papers sufficiently demonstrate that the discovery was served by mail and email and Plaintiff has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c). Defendant requests sanctions of \$3,060.00 consisting of 12 attorney hours at a rate of \$250 per hour, plus a \$60 filing fee. The Court finds the hourly rate reasonable and will award the filing fee. The Court will reduce estimated attorney hours by 6, because there was no opposition to review (1 hour) or reply to prepare (3 hours), and 3 hours for preparing and attending a hearing on this motion is excessive (1

hour is reasonable). The total reasonable fee and cost award is \$1,560.00.

Defendant's Motion to Deem Request for Admission, Set One Admitted by Plaintiff is **GRANTED**. Sanctions of \$1,560.00 are imposed against Plaintiff and are payable within 30 days of notice of entry of order. A proposed order has been lodged and will be modified.

#### **JOHANSON VS. NORTH STATE GROCERY, INC**

**CASE NUMBER: 24CV-0206490**

**Tentative Ruling on Early Evaluation Conference:** On August 25, 2025, Defendant North State Grocery, Inc. filed a "Request for Early Evaluation Conference." On February 9, 2026, the Court granted Defendant's request and issued a detailed tentative ruling outlining the requirements of the Early Evaluation Conference as provided in Labor Code section 2699.3(f). Defendant was instructed to submit a proposed order. On March 30, 2026, the Court issued the proposed order submitted by Defendant. The order did not contain the deadlines required by Labor Code section 2699.3. Regardless of whether the deadlines were included in the order, Defendant was aware of the deadlines based on the Court's prior ruling for the February 9, 2026 hearing. An issue has now arisen about Defendant's compliance with the requirements of section 2699.3(f) and whether this Court can issue a further Early Evaluation Conference or extend the statutory timeframes found in section 2699.3(f). The Court invited briefing on the matter. Plaintiff's briefing opposes a further Early Evaluation Conference, while Defendant's briefing argues for the process to proceed. The Court has reviewed section 2699.3 and finds that the statutory deadlines cannot be satisfied based on the conduct of the Defendant. The Court intends on lifting the stay and allowing the litigation to proceed but will hear from the parties at the time of the hearing. **An appearance is necessary on today's calendar to provide argument related to a further Early Evaluation Conference.**

#### **LOZANO VS. COUNTY OF SHASTA**

**CASE NUMBER: 26CV-0210630**

**Tentative Ruling on Demurrer:** Defendant, County of Shasta, demurs to the Complaint filed on May 11, 2026, by Plaintiff Ryan Lozano. Plaintiff has not opposed the demurrer.

As a preliminary matter, Plaintiff filed a First Amended Complaint on July 1, 2026. Generally, this would cause the demurrer to be moot; however, the First Amended Complaint was not signed by Plaintiff. Due to Plaintiff's failure to sign the amended complaint, the Court orders the First Amended Complaint filed on July 1, 2026, **STRICKEN**.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Renee Belcastro indicates that Defendant attempted to call Plaintiff to meet and confer but was unsuccessful. Defendant subsequently emailed with Plaintiff, and Plaintiff provided a new phone number where he could be reached. There is no indication that Defendant attempted to call Plaintiff at his new number to meet and confer on the demurrer. This is insufficient. The parties are reminded of their obligation to meet and confer in compliance with CCP § 430.41.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid